



CHAPTER xci.

An Act for incorporating and conferring powers on the A.D. 1912.
Woking District Gas Company. [7th August 1912.]

WHEREAS the Woking District Gas Company Limited (in this Act called "the limited company") were in the year one thousand eight hundred and ninety incorporated under the Companies Acts 1862 to 1890:

And whereas by the Woking District Gas Order 1891 (in this Act referred to as "the Order of 1891") confirmed by the Gas and Water Orders Confirmation Act 1891 the limited company were authorised to supply and sell gas within the parishes of Woking Horsell Send and Ripley Pyrford and Byfleet all in the county of Surrey and to raise share capital not exceeding sixteen thousand pounds and empowered to borrow on mortgage to the amount of one fourth of such capital:

And whereas by the Woking District Gas Order 1901 (in this Act referred to as "the Order of 1901") confirmed by the Gas and Water Orders Confirmation Act 1901 the limited company were authorised to raise further share capital not exceeding twenty thousand pounds and empowered to borrow on mortgage to the amount of one fourth of such further capital:

And whereas by the Woking District Gas Order 1903 (in this Act referred to as "the Order of 1903") confirmed by the Gas Orders Confirmation (No. 1) Act 1903 it was provided that a dividend of seven pounds per centum per annum should be paid on all the ordinary stock or shares of the limited company before any dividend above that rate was paid on the ordinary stock or shares issued before the commencement of the Order of 1901:

And whereas by the Woking District Gas Order 1907 (in this Act referred to as "the Order of 1907") confirmed by the

A.D. 1912. Gas and Water Orders Confirmation (No. 1) Act 1907 the limited company were authorised to raise further share capital not exceeding thirty thousand pounds and empowered to borrow on mortgage to the amount of one fourth of such further capital:

And whereas the amount of the capital of the limited company which is respectively authorised paid up and unissued and the classes into which the same is divided and the maximum dividends which the limited company are authorised to pay thereon are as set forth in the following table:—

Order authorising same.	Description of Capital authorised.	Capital paid up.	Authorised maximum Dividend.	Capital unissued.
Order of 1891	£16,000 in ordinary shares.	£16,000	10 per centum.	None.
Order of 1901	£20,000 in ordinary shares.	£18,785 in ordinary shares. £1,215 premiums thereon not bearing dividend.	7 per centum.	None.
Order of 1907	£30,000 in ordinary 7 per centum maximum or preference 5 per centum maximum shares or stock.	£25,000 in preference stock. £210 premiums thereon not bearing dividend.	5 per centum.	£4,790.
TOTAL -	£66,000	£61,210		£4,790

And whereas the limited company have borrowed on mortgage sums amounting in the whole to eight thousand nine hundred and ninety pounds and there remains a balance of seven thousand five hundred and ten pounds which the Company are empowered to borrow on mortgage:

And whereas it is expedient that the limited company should be dissolved and reincorporated and should be authorised to supply gas within the limits of supply defined by this Act:

And whereas portions of the district supplied with gas by the limited company are within the limits for the supply of gas of the Woking Water and Gas Company (hereinafter called "the Woking Company") under the Woking Water and Gas Act 1881 but the Woking Company are not supplying and never have supplied gas to any part of the district supplied by the limited company or within any part of the limits of supply under this Act and it is therefore expedient that so much of the said Act of 1881 and any Act amending the same as relates to the supply of gas by the Woking Company to certain

parishes or places within the limits of supply under this Act A.D. 1912.
should be repealed:

And whereas the parish of Bisley which is included in the limits of supply under this Act is within the limits for the supply of gas of the Ascot District Gas and Electricity Company (in this Act called "the Ascot Company") under the Ascot District Gas Act 1882 but the Ascot Company are not supplying and never have supplied gas to any part of the said parish and it is expedient that so much of the said Act of 1882 as relates to the supply of gas by the Ascot Company within the said parish should be repealed:

And whereas it is expedient that the Company should be authorised to raise additional capital and acquire additional lands for the purposes of their undertaking and that such further powers should be conferred upon the Company and such further provisions enacted as are contained in this Act:

And whereas a plan showing the lands which may be taken or used compulsorily under the powers and for the purposes of this Act and a book of reference to the plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Surrey and are hereinafter referred to respectively as the deposited plan and book of reference:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1. This Act may be cited as the Woking District Gas Short title.
Act 1912.

2. The following Acts and parts of Acts are (subject to Incorporation of general Acts.
the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital);

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Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

The Gasworks Clauses Acts 1847 and 1871. Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also" "that every such contract entered into by the Company" "shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section; and

The Lands Clauses Acts.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

The expression "the Company" means the Woking District Gas Company incorporated by this Act;

The expression "the undertaking" means the gas undertaking by this Act authorised;

The expression "the limits of supply" means the limits within which the Company are by this Act authorised to supply gas.

REINCORPORATION.

Reincorporation of Company.

4. As from the first day of January one thousand nine hundred and thirteen (in this Act referred to as "the date of transfer") the limited company shall be dissolved and the several persons who immediately before the date of transfer were members of that company and all other persons who have already subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes hereinafter mentioned and shall be and are hereby reincorporated by the name of "The Woking District Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act and of their undertaking.

5. The Company shall be established for the purpose of manufacturing storing and supplying gas for lighting heating motive power and other purposes within the limits of supply as defined by this Act and may manufacture convert and sell all residual products resulting from the manufacture of gas by them and generally may carry on any business usually carried on by gas companies.

A.D. 1912.
General
purposes of
Company.

6. Subject to the provisions of this Act all the lands gas-works erections buildings rights and easements which immediately before the date of transfer were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all plant mains pipes retorts meters gas stoves and fires gas-fittings lamp-columns and brackets syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the date of transfer were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the date of transfer belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the date of transfer in force shall as from the date of transfer be and the same are hereby transferred to and vested in the Company to the same extent and for the same estate and interest as the same were previously to the date of transfer vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Present pro-
perty of
limited
company
vested in
Company.

7. Subject to the provisions of this Act as from the date of transfer so much of the confirmation Acts respectively as confirms the Orders of 1891 1901 1903 and 1907 is hereby repealed and those Orders are hereby annulled and the memorandum and articles of association of the limited company shall as to any prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of the said Orders or of any Act which applied to the limited company and the members thereof as such But nothing in this Act contained shall release or discharge any person from any liability or obligation in respect

Repeal of
Orders of
1891 1901
1903 and
1907 and
memoran-
dum and
articles of
association
of limited
company
to be void.

A.D. 1912. of any breach of the provisions of the said Orders or of the said memorandum and articles of association incurred before the date of transfer but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

Saving of
existing
rights and
liabilities.

8. Except as is by this Act otherwise expressly provided everything before the date of transfer done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the Orders of 1891 1901 1903 and 1907 had not been annulled and the Acts confirming them respectively had not been so in part repealed and the memorandum and articles of association had not been avoided by this Act and such incorporation annulment repeal and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said Orders were not annulled and the Acts confirming them were not so in part repealed and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Contracts
prior to date
of transfer to
be binding.

9. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the date of transfer by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and at the date of transfer in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or the trustees

or persons acting on behalf of the limited company, the Company had been a party thereto. A.D. 1912.

10. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the date of transfer but such action suit or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively. Actions &c.
not to abate.

11. Every person who (being authorised so to do) before the date of transfer entered into any bond covenant contract or engagement on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement. Indemnity.

12. From and after the date of transfer and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the date of transfer were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf. Company to
satisfy lia-
bilities of
limited
company.

13.—(1) The directors out of any moneys of the limited company transferred to the Company under this Act and which would have been available for the payment of dividends if this Act had not been passed shall as soon as reasonably practicable after the date of transfer pay to the persons who immediately before the date of transfer held any shares or stock issued by the limited company dividends (subject in each case to the deduction of income tax) on such shares and stock for that period of the year one thousand nine hundred and twelve in Dividends on
shares and
stock of
limited
company.

A.D. 1912. — respect of which no dividends other than interim dividends (if any) have been paid by the limited company.

(2) Any dividends paid by the Company under the provisions of this section shall be at the rates at which (having regard to the available profits earned by the limited company in respect of the said year) dividends would in the opinion of the directors have been payable if this Act had not been passed. Provided always that in ascertaining the rate at which any such dividends shall be paid and in distributing the same due allowance shall be made for any interim or other dividend paid by the limited company out of profits earned during the period in respect of which any dividends paid by the Company under this section are paid.

(3) For the purpose of the payment of dividend under the provisions of this section the several persons whose names shall appear in the books of the limited company at the date of transfer to be the holders of shares or stock therein shall unless the contrary be proved to the satisfaction of the directors be considered to be the shareholders or stockholders of the limited company and the receipt in writing of such persons or of their executors administrators or assigns or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the Company and the directors thereof for the money therein expressed to be received and shall exonerate such directors from any obligation in respect of the payment of dividends affecting the stock share or interest in respect whereof that money is paid.

(4) Where the directors are for six months after the date of transfer unable to ascertain the person to whom any moneys are payable under the provisions of this section or where any money so payable is payable to a person by or on behalf of whom an effectual receipt cannot be given or on account of any other reasonable cause the directors may pay such money into the Supreme Court under any Act for the time being in force for the relief of trustees and every such payment into court shall effectually discharge the directors and the Company from all further liability with respect to such moneys.

Recovery of
gas rents
&c.

14. All accounts for gas supplied and sums of money which immediately before the date of transfer were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they were due or accruing to the Company.

15. All persons who immediately before the date of transfer owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the date of transfer were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

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As to payment of debts owing before date of transfer.

16. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions before the date of transfer made or executed under them for and with respect to any shares or stock in the limited company shall remain in full force and continue and be available in all respects as if such memorandum and articles had not been avoided.

Certificates &c. to remain in force.

17. All documents books and writings which if the said dissolution annulment repeal and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution annulment repeal and avoidance.

Books &c. continued evidence.

18.--(1) The Company shall take over and employ such of the officers and servants of the limited company as shall be in the employ of the limited company at the date of transfer and as shall be willing to enter the service of the Company Any officer or servant so taken over shall hold such office or employment under the Company as he held under the limited company until he resigns or his office or employment is duly determined by the Company and shall until such resignation or determination receive from the Company not less than the salary and agreed emolument which he was receiving from the limited company on the date of transfer and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if he had been appointed under this Act.

Officers to continue until removed.

(2) In this section the expression "officer" means any person who at the date of transfer is a secretary manager accountant collector or other salaried officer of the limited company but does not include the auditor of the limited company.

A.D. 1912.
Present registers of members to be continued.

19. The books kept by the limited company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

CAPITAL.

Capital.

20. The capital of the Company shall be one hundred and five thousand pounds of which capital fifty-nine thousand seven hundred and eighty-five pounds is in this Act called "the original capital" and shall be substituted for the existing share capital of the limited company and forty-five thousand two hundred and fifteen pounds is in this Act called "the additional capital" and may be raised in manner in this Act mentioned.

Division of original capital.

21. The original capital shall be divided into sixteen thousand pounds ordinary stock (in this Act called "A ordinary stock") eighteen thousand seven hundred and eighty-five pounds ordinary stock (in this Act called "B ordinary stock") and twenty-five thousand pounds five pounds per centum preference stock (in this Act called "C preference stock").

Allocation of original capital.

22. Forthwith after the date of transfer the Company shall issue and allocate the original capital as follows (that is to say) :—

(1) The A ordinary stock shall be divided among and vested in the several persons who immediately before the date of transfer were registered as holders of the sixteen thousand pounds ordinary capital entitled to a maximum dividend of ten per centum per annum issued by the limited company in the proportion of five pounds of A ordinary stock for each five pounds of such ordinary capital held by them respectively :

(2) The B ordinary stock shall be divided among and vested in the several persons who immediately before the date of transfer were registered as holders of the eighteen thousand seven hundred and eighty-five pounds ordinary capital entitled to a maximum dividend of seven per centum per annum issued by the

limited company in the proportion of five pounds of B ordinary stock for each five pounds of such ordinary capital held by them respectively :

- (3) The C preference stock shall be divided among and vested in the several persons who immediately before the date of transfer were registered as the holders of the twenty-five thousand pounds five per centum preference stock issued by the limited company in the proportion of five pounds of C preference stock for each five pounds of such five per centum preference stock held by them respectively :
- (4) Upon the passing of this Act there shall be created by virtue of this Act sufficient A ordinary B ordinary and C preference stock to give effect to the provisions of this section :
- (5) All stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities as immediately before the date of transfer affected the stock or shares in the limited company in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting any stock or shares in the limited company and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the stock created under or by virtue of this Act and substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any stock or shares in the limited company are hereby expressly authorised and required to accept any A ordinary B ordinary and C preference stock allocated to and vested in them pursuant to the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the stock or shares in the limited company for which such stock created under or by

A.D. 1912.

virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act.

Exchange of
certificates.

23. The Company shall call in and cancel the existing certificates of stock and shares in the limited company and issue in lieu thereof certificates for the stock to which the holders of such stock or shares are by this Act respectively entitled but no holder of any such stock or shares shall be entitled to any certificate of proprietorship under this Act until he shall have delivered up to the Company to be cancelled the existing certificate of proprietorship of stock or shares in the limited company issued to him before the date of transfer or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof but if any holder of any existing stock or shares of the limited company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the shareholders' address book of the limited company the Company may retain any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the stock or shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed and an indemnity is given against any claim in respect of such lost or destroyed certificate to the satisfaction of the directors of the Company.

Power to
raise addi-
tional
capital.

24. The Company may raise additional capital not exceeding in the whole forty-five thousand two hundred and fifteen pounds by the creation and issue at their option of additional B ordinary stock or additional C preference stock or wholly or partially by one or other of those modes but the Company shall not issue any stock created under the authority of this Act of less nominal value than one pound or multiples of one pound Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of forty-five thousand two hundred and fifteen pounds Provided also that the Company shall not at any time create under the powers of this section any greater nominal amount of preference stock than shall together with any preference stock

created under the foregoing provisions of this Act amount to A.D. 1912.
fifty-two thousand five hundred pounds.

25.—(1) All stock created under the powers of the section of this Act of which the marginal note is “Power to raise additional capital” shall be issued in accordance with the provisions of this section. New stock to be sold by auction or tender.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the clerk of each urban district council and rural district council whose district or any portion of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be disposed of by the directors at a price not

A.D. 1912. less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of stock if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of stock.

Privileges
&c. of
holders of
additional
capital.

26. Except as is otherwise by this Act provided the additional capital created by the Company under this Act shall be part of the general capital of the Company and the new stock therein and the holders thereof respectively shall be entitled to the like rights of voting and any other rights qualifications and privileges in proportion to the amount of their stock and be subject to the like provisions and liabilities as the holders of stock of the same class issued in substitution for existing stock and shares under this Act.

LIMITATION OF PROFITS.

Profits of
Company
limited.

27. Except as is by this Act provided the profits of the undertaking to be divided among the stockholders shall not exceed the following rates (namely):—

On the A ordinary stock the rate of ten pounds per centum per annum and on the B ordinary stock (including

additional B ordinary stock) the rate of seven pounds per centum per annum in respect of every one hundred pounds actually paid up or credited as paid up on such stocks respectively (which rates are in this Act referred to as "the standard rates of dividend"):

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On the C preference stock (including additional C preference stock) at the rate of five pounds per centum per annum in respect of every one hundred pounds actually paid up or credited as paid up thereon.

28.—(1) If in any half year the funds of the Company applicable to payment of dividends on the ordinary capital shall be insufficient to pay dividends at the standard rates on the A ordinary stock and the B ordinary stock respectively such funds shall be applied in the first place in the payment of dividend at an equal rate on both the A ordinary stock and the B ordinary stock until there shall have been paid a dividend at the rate of seven pounds per centum per annum on both such A ordinary stock and B ordinary stock and then in payment of a further dividend upon the A ordinary stock. Provided always that the provisions of this subsection shall cease to operate so soon as the Company shall have once paid dividends at the respective standard rates on the respective amounts of the A ordinary stock and the B ordinary stock for the time being actually paid up.

As to payment of dividends in certain events.

(2) Subject as hereinbefore in this section provided if in any half year the funds of the Company applicable to dividend on the ordinary capital shall be insufficient to pay the full amount of dividend at the standard rate on the A ordinary stock and the B ordinary stock a proportionate reduction shall be made in the dividend on each such class of stock.

RESERVE AND SPECIAL PURPOSES FUNDS &C.

29. Where in any half year the dividends which may be paid by the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such half year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such half year set apart such sum as they shall think fit and all sums so set apart by the Company and any reserve or other fund (other than the renewal fund) of the limited company existing at the

Power to create reserve fund.

A.D. 1912.

passing of this Act shall be invested in any securities in which trustees are authorised by law to invest money or in such other securities as shall be authorised by a resolution of the Company other than the debentures or stocks of the Company and the dividends and income arising from such securities shall be invested in the same or the like securities in order that the same shall accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any half year in which the clear profits of the Company shall be insufficient to enable the Company in such half year to pay the dividends at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any half year be carried by the Company to any reserve fund.

Power to
create a spe-
cial purposes
fund.

30.—(1) The directors of the Company may if they think fit in any half year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or an incorporated accountant being an auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented ; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the

credit of the fund is for the time being less than the maximum A.D. 1912.
allowed by this section.

(6) The money or securities standing to the credit of any renewal fund of the limited company at the date of transfer shall be credited to the special purposes fund.

31. If the clear profits of the undertaking in any half year (after appropriating and setting apart such sum or sums (if any) as may be determined upon under the powers of this Act to any fund or funds thereby authorised) amount to a larger sum than is sufficient to pay the dividends on the preference capital and the dividends at the authorised rates on the ordinary capital of the Company the excess shall be carried to the credit of the profit and loss (net revenue) account of the undertaking for the next following half year: Application of excess of profits.

Provided that the sum standing to the credit of such profit and loss (net revenue) account to be carried forward to the next following half year shall not at any time exceed the amount required to pay one year's dividends at the authorised rates on the preference and ordinary capital of the Company.

BORROWING POWERS.

32. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (inclusive of the aggregate sum of eight thousand nine hundred and ninety pounds already borrowed by the limited company) one-third part of the amount of the capital of the Company which at the time of borrowing has been actually issued or raised by the Company under the powers or in pursuance of the provisions of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time issued together with the premiums (if any) realised on the sale thereof has been fully paid up. Power to borrow.

33. All mortgages and bonds granted by the limited company before the date of transfer and subsisting at the passing of this Act shall during the continuance of such mortgages and bonds and subject to the terms thereof have priority over all mortgages and debenture stock granted or created and issued by virtue of this Act but nothing in this section contained shall affect any Priority of existing mortgages.

A.D. 1912. priority of the interest of any debenture stock at any time created and issued by the Company.

Arrears to be enforced by appointment of a receiver.

34. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Debenture stock.

35. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages over other debts.

36. All moneys raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge which may be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

Application of moneys.

37. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

MEETINGS.

A.D. 1912.

38. The first ordinary meeting of the Company shall be held within six months after the date of transfer at the Company's principal offices or at such other place as the directors shall appoint and all subsequent ordinary meetings of the Company shall be held half-yearly in the months of February or March and August or September in every year at the Company's principal office or at such other place and at such other time as shall be appointed for that purpose by an order of the directors.

Ordinary
meetings.

39. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be seven stockholders present in person or by proxy holding in the aggregate not less than one-twentieth of the paid-up capital of the Company.

Quorum of
general
meetings.

40. The prescribed scale of voting shall be one vote for every complete five pounds of preference or ordinary stock.

Scale of
voting.

DIRECTORS AND AUDITORS.

41. The number of directors shall be four but the Company may vary the number provided that the number be not at any time more than seven or less than four.

Number of
directors.

42.—(1) The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than four hundred pounds Provided that at least one half of such qualification shall consist of A ordinary stock or B ordinary stock or partly of the one and partly of the other of such stocks.

Qualification
of directors.

(2) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend the meetings of directors for six months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(3) The continuing directors may act notwithstanding any vacancy in the number of directors.

43. The quorum of a meeting of directors shall be three.

Quorum of
directors.

44. Charles Hoskins Master George Barron Holroyd Samuel Spencer and Horace Augustus Lermite shall be the

First
directors.

A.D. 1912. first directors of the Company and shall continue in office until the first ordinary meeting held after the date of transfer.

Election of directors.

45. At the first ordinary meeting held after the date of transfer the stockholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year (other than the first ordinary meeting held after the date of transfer) the stockholders present in person or by proxy shall (subject to the provisions hereinbefore contained allowing variation in the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

As to appointment of managing director.

46.—(1) The directors may appoint any one or two of their body to be a managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers Provided that the directors shall be responsible for the acts of any managing director acting under the powers of this section.

47. The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the stockholders of the Company passed at a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors and need not hold stock in the Company.

A.D. 1912.
Auditors.

WORKS AND LANDS.

48. Subject to the provisions of this Act the Company may for the purposes of the undertaking enter upon take and use such of the lands delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of the undertaking.

Power to
take lands.

49. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of the acquisition of such lands be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights
of way over
lands taken
compulsorily.

50. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Surrey for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Surrey and such certificate shall be kept by such clerk of the peace with the other documents to which the same relate and thereupon the deposited plan and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Correction of
errors in de-
posited plan
and book of
reference.

51. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
compulsory
purchase of
lands.

A.D. 1912.

Power to
purchase
lands by
agreement.

52. The Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands described in the schedule to this Act any lands and hereditaments not exceeding in the whole five acres which they may require for the purposes of their works and the undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Persons
under dis-
ability may
grant ease-
ments &c.

53. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
sell and
lease lands.

54. The Company may subject to the provisions of the Lands Clauses Consolidation Act 1845 sell or let on lease for such periods as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of the undertaking and may retain and hold sell and dispose of any interest in or reversion to any lands so let and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

As to
Horsell
Common.

55.—(1) The Company shall not under the powers of this Act acquire any part of the common known as Horsell Common but the Company may purchase and acquire and all persons interested therein shall sell to the Company a right or rights or an easement or easements of constructing erecting maintaining improving repairing and using on and over a strip or strips thereof not exceeding in each case thirty feet in width lying between the lands of the Company and the Basingstoke Canal Navigation a tramway or overhead or other conveyor gantries cranes lifts and apparatus for or in connection with the transmission of coals coke oil and other goods and merchandise and of laying

down pipes for conveying water to and from the said lands of the Company from and to the said navigation and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to any such right or easement as fully as if such right or easement were lands within the meaning of those Acts and the Company may until they shall have respectively constructed or erected such tramway or overhead or other conveyor gantries cranes lifts and apparatus and laid down such pipes as aforesaid maintain relay improve and use (but subject to any existing agreement relating thereto) the existing tramway and water pipe of the Company now lying between the said lands of the Company and the said navigation but subject as aforesaid the Company shall not interfere with any rights of access in or over any such strip of common:.

A.D. 1912.

Provided that the Company shall not (except so far as may be necessary to allow of the construction or erection of any such works in an altered situation) exercise or enjoy any such right or easement whether under any existing agreement or otherwise over more than one such strip at any one time and shall not except by agreement with the urban district council of Woking alter the situation of any such works which may be erected or constructed under the provisions of this section from one such strip to another nor except by such agreement exercise or enjoy any such right or easement over any such strip exceeding twenty feet in width nor except by such agreement lay any pipe on the surface of such strip.

(2) Nothing in this section shall be deemed to prohibit the acquisition by the Company of any such easement as is mentioned in the section of this Act of which the marginal note is "Power to acquire easements."

56. Subject to the provisions of this Act the Company may in or upon the lands described in the schedule to this Act maintain alter improve enlarge extend renew or discontinue the existing gas and other works of the limited company and may upon those lands or any part thereof erect construct maintain alter improve enlarge extend renew or discontinue gasworks retorts gasholders drains sewers mains pipes machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas for public and private purposes in bulk or otherwise for lighting heating motive power or other purposes within the limits of supply and may make store and supply gas

Construction and maintenance of gasworks &c.

A.D. 1912. accordingly and may manufacture and convert all residual products resulting from the manufacture of gas by them.

Company
may make
lifts &c.

57.—(1) The Company may in over under and upon the lands shown on the deposited plan (but as respects Horsell Common only on acquiring any necessary rights or easements) and any other lands which may become vested in them by or under the powers of this Act and which may adjoin or be near to or form part of the Basingstoke Canal Navigation or the towing-path thereof or any part of such lands construct erect maintain alter remove use and work such lifts tips cranes gantries and other appliances apparatus pipes and conveniences as may be necessary proper or convenient for the purpose of conveying or transmitting coal coke oil and other goods and merchandise to and from the said lands or the works of the Company or any part thereof from and to the said navigation and for enabling the Company to obtain access along over or under the said lands to or from their works and the said navigation or the foreshore bed banks or towing-path thereof and the Company may within the said limits make up repair dredge cleanse and maintain the banks bed foreshore and towing-path of the said navigation.

(2) The Company on the one hand and the Basingstoke Canal Navigation or any other body or person interested in the said lands or navigation on the other hand may enter into and carry into effect agreements and arrangements with reference to the exercise by the Company of the rights and powers conferred on them by the last preceding subsection.

(3) The Company shall not in exercising the rights and powers conferred upon them by this section interfere with the level and proper use of the towing-path or the waterway of the said navigation and if and whenever the Company make or occasion any obstruction in the exercise of the said rights or powers they shall make to all persons interested full compensation for all loss damage or injury thereby occasioned.

Power to
abstract
water from
Basingstoke
Canal Navigation.

58.—(1) The Company may abstract and use water from the Basingstoke Canal Navigation for the purposes of the undertaking and may return to the said navigation all water so abstracted and not consumed by the Company and may for such purposes lay down maintain repair alter and use pipes in on and under or over the bed and foreshore of the said navigation and in and under the towing-path thereof but nothing contained in this section shall authorise the Company to supply water to

other persons except with the consent of the owners of the Basingstoke Canal Navigation. A.D. 1912.

(2) The Company on the one hand and the London and South Western Canal Limited or other the owners of and persons interested in the Basingstoke Canal Navigation or any of them on the other hand may from time to time enter into and carry into effect contracts agreements and arrangements for and with respect to all or any of the said matters.

59. Notwithstanding anything contained in this Act or shown on the deposited plan the Company shall not purchase or acquire any part of the Basingstoke Canal Navigation or of the bed banks foreshore and towing-path thereof or any greater right or interest therein respectively than the right to use or an easement or easements of using the same for the purpose of constructing erecting maintaining using and working in over under or upon the same the lifts tips cranes gantries and other appliances apparatus pipes and conveniences which the Company are by this Act authorised to lay down construct erect maintain use and work and for the purpose of making-up repairing dredging cleansing and maintaining the said banks bed foreshore and towing-path so far as the Company are by this Act authorised to make up repair dredge cleanse and maintain the same but the Company may purchase and acquire and the owners and other persons interested in the said navigation and bed banks foreshore and towing-path shall sell to the Company if required any such right or easement as aforesaid and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to any such right or easement as fully as if such right or easement were lands within the meaning of those Acts.

Power to
acquire
easements.

60. Subject to the provisions of this Act the Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking-up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Power to
utilise
pipes for
ancillary
purposes.

A.D. 1912.

Power to
lay pipes in
private
streets.

61. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were a street within the meaning of those Acts.

For pro-
tection of
Conservators
of River
Thames.

62. For the protection of the Conservators of the River Thames (in this section referred to as "the conservators") the following provisions shall notwithstanding anything contained in this Act unless otherwise agreed in writing have effect (that is to say):—

- (1) The Company shall not abstract in any one day of twenty-four hours reckoned from midnight to midnight a greater quantity of water from the Basingstoke Canal Navigation than thirty thousand gallons:
- (2) The Company shall return to the said navigation all water so abstracted and not consumed by the Company and shall return the same entirely free from any sewage or other offensive or injurious matter and at a temperature not exceeding one hundred degrees Fahrenheit:
- (3) The conservators and any officer of the conservators duly authorised by them in that behalf and producing his authority if required shall at all reasonable times have access to the works of the Company to enable them to ascertain whether the provisions of the last preceding subsection as to the return of water and as to temperature are being duly complied with:
- (4) Nothing contained in this Act shall extend to or be construed to extend to prejudice or derogate from the estates rights interests privileges liberties or franchises of the conservators or to prohibit defeat alter or diminish any powers authority or jurisdiction which at the time of the passing of this Act the conservators did or might lawfully claim use or exercise.

For pro-
tection of
owners of
Basingstoke
Canal Navi-
gation.

63.—(1) For the protection of the London and South Western Canal Limited or other the owners for the time being of the Basingstoke Canal Navigation (all of whom are in this section referred to as "the canal company") the following provisions shall unless otherwise agreed between the Company

and the canal company apply and have effect in relation to the execution by the Company of any works under the powers of this Act affecting the Basingstoke Canal including the foreshore bed banks and towing-path thereof (that is to say):— A.D. 1912.

- (A) Before commencing any such work the Company shall (except in case of urgency when no notice shall be necessary) give to the canal company not less than seven days' notice in writing of their intention to commence such work with particulars of the same and specifying the time at which they will begin the same:
- (B) The Company shall pay to the canal company compensation for any injury done to the said canal or for loss of traffic thereon occasioned by and during the execution of any such work:
- (C) The Company shall not execute any such work except under the superintendence of the canal company (if they shall give such superintendence at the time specified in the notice for the commencement of the same) and they shall execute all such works to the reasonable satisfaction of the canal company.

(2) The price to be paid by the Company for water abstracted from the Basingstoke Canal Navigation under the powers of the section of this Act of which the marginal note is "Power to abstract water from Basingstoke Canal Navigation" shall be the sum of fifteen pounds per annum where the amount abstracted in any year does not exceed five hundred thousand gallons and at the rate of five pounds per annum in respect of every additional five hundred thousand gallons or part thereof.

(3) All water so abstracted from the Basingstoke Canal Navigation shall be measured by a suitable meter to be provided fixed and maintained by the Company at or near the point of abstraction and the Company shall at the request of the canal company afford to the canal company all reasonable facilities for inspecting such meter at all reasonable times.

(4) If any question arises under this section between the Company and the canal company that question shall be referred to and determined by a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the Arbitration Act 1889 shall apply to any such reference.

A.D. 1912.

For pro-
tection of
London and
South West-
ern Railway
Company.

64. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall (unless otherwise agreed between the Company and the South Western Company) apply and have effect:—

- (A) In laying down repairing or removing any mains or pipes or executing any other works in the exercise of the powers contained in this Act or in any Act incorporated therewith upon across over under or in any way affecting the South Western Railway or any bridge over or under such railway or any approaches to any such bridge within the South Western Company's boundary the same shall be laid down repaired removed or executed under the superintendence and to the reasonable satisfaction of the chief engineer of the South Western Company and according to such plans sections and specifications and except in case of urgent necessity at such times as shall be previously submitted to and as shall be reasonably approved in writing by him and any such works shall be executed by and at the expense in all things of the Company and so as not to cause any injury to the said railway or to any such bridge or the approaches thereto within the South Western Company's boundary and the Company shall within such boundary so execute any works as having regard to the existing level of the roadway shall interfere with or impede as little as possible any improvement or widening of such railway or bridge or the introduction of side openings to such bridge Provided that if the said engineer does not express his approval or disapproval of the said plans sections and specifications within twenty-eight days after the same have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operation the Company may execute the work without his superintendence Provided also that where there is not sufficient space on any bridge to lay any mains or pipes between the road surface and the structure of any such bridge the South Western Company may require such mains or pipes to be carried below outside or independently of the structure of any such bridge

and shall afford all reasonable facilities for the purpose : A.D. 1912.

- (B) If any injury or damage to or any interruption of the South Western Company's traffic shall be in any way directly or indirectly occasioned by the Company or by their contractors agents or workmen the Company shall forthwith make full compensation to the South Western Company in respect thereof :
- (c) All mains pipes and other works of the Company upon across over under or in any way affecting the South Western Railway or any bridge over or under the same or the approaches thereto within the South Western Company's boundary shall be at all times maintained in good repair by the Company and in default of their being so maintained the South Western Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Company require the Company to forthwith put into good repair any such main pipe or other work as aforesaid as may be in want of repair and if the Company for seven days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity thereof the South Western Company may without any further notice to the Company repair the same and all expenses reasonably incurred by them in or about such repair shall be repaid to them by the Company Provided that in case of accidents happening or immediate danger being apprehended to the South Western Railway or any bridge over or under such railway or the approaches thereto by reason of any such main pipe or other work as aforesaid being in want of repairs the South Western Company may without giving such notice as aforesaid make such repairs as may be necessary and the expenses of the same shall be repaid as hereinbefore provided :
- (D) The Company shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the South Western Railway

A.D. 1912.

with reference to and during such construction and repairs so far as such costs may be in case of difference determined by the arbitrator to have been necessary :

- (E) Any difference which may arise between the South Western Company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of
Woking
Water and
Gas Com-
pany.

65.—(1) Whenever the Company in exercise of the powers of this Act require to execute any work over under or within three feet of any main pipe or apparatus belonging to the Woking Water and Gas Company (in this section referred to as “the water company”) or whenever the water company, in the exercise of their statutory powers require to execute any work over under or within three feet of any main pipe or apparatus of the Company the Company or the water company as the case may be (in this section referred to as “the operators”) shall unless otherwise agreed between the parties interested give to the water company or to the Company as the case may be (in this section referred to as “the owners”) not less than three days’ notice before commencing to execute any such work as aforesaid except in cases of emergency and then so soon as is possible after the beginning of the work or the necessity for the same shall have arisen and the owners shall be entitled by their officer to superintend the work and the operators shall conform with such reasonable requirements as may be made by the owners or such officer for protecting from injury every such main pipe or apparatus and for securing access thereto and shall also if required so to do by the owners repair any damage that may be done thereto whether directly or by disturbance of the ground wherein the same is laid or by subsequent settling of the said ground or by any other means whatsoever.

(2) Where the operators find it necessary to undermine any such main pipe or apparatus they shall temporarily support the same in position during the execution of their works and before completion provide a suitable and proper foundation for the same where so undermined.

(3) If the operators make default in complying with any of the requirements or restrictions of this section they shall make full compensation to the owners affected thereby for any loss damage penalty or costs which they may incur by reason thereof. A.D. 1912.

(4) Any question or difference which may arise between the Company and the water company under this section shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration.

SUPPLY PRICE AND TESTING OF GAS.

66. The powers and rights now vested in and enjoyed by the limited company under the Order of 1891 to supply gas within the limits defined in the said Order (except so much of the parish of Byfleet as lies to the east of the River Wey Navigation Canal) are hereby transferred to and vested in the Company and the Company may also supply gas within the parishes of Wisley Ockham West Horsley East Horsley Pirbright and Bisley all in the county of Surrey. Limits for supply of gas.

67. So much of the Woking Water and Gas Act 1881 and any Act amending or extending the same as authorises the Woking Company to supply gas within any portions of the parishes of Woking Horsell Send and Ripley West Horsley East Horsley and Pirbright which are within the limits of supply is hereby repealed and from and after the passing of this Act all the powers and obligations of the Woking Company with reference to the supply of gas within any such portions of the said parishes shall cease and determine. Repeal of power of Woking Company to supply gas within certain limits.

68. So much of the Ascot District Gas Act 1882 and any Act amending or extending the same as authorises the Ascot Company to supply gas within the parish of Bisley is hereby repealed and from and after the passing of this Act all the powers and obligations of the Ascot Company with reference to the supply of gas within the said parish shall cease and determine. Repeal of power of Ascot Company to supply gas within parish of Bisley.

69.—(1) The price to be charged by the Company for gas supplied by them within the parishes of Woking Horsell Send and Ripley Pyrford and within so much of the parish of Byfleet as is within the limits of supply (in this Act called "the inner Dividend dependent on price charged.

A.D. 1912. — area") shall be four shillings and sixpence per one thousand cubic feet and such price is in this Act referred to as "the standard price":

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividends payable by the Company on the A ordinary stock and B ordinary stock as follows:—

In respect of any half year during any part of which the price charged by the Company for any gas supplied by them within the inner area shall have been one penny or part of a penny above the standard price the dividends payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been so increased be reduced below the standard rates of dividend by two shillings and sixpence upon every one hundred pounds of A ordinary stock and by one shilling and ninepence on every one hundred pounds of B ordinary stock and so in proportion for any fraction of one hundred pounds:

In respect of any half year during the whole of which the price charged by the Company for gas supplied by them within the inner area shall have been one penny or more below the standard price the dividends payable by the Company may in respect of each penny by which the standard price shall have been so reduced be increased above the standard rates of dividend by two shillings and sixpence upon every one hundred pounds of A ordinary stock and by one shilling and ninepence upon every one hundred pounds of B ordinary stock and so in proportion for any fraction of one hundred pounds.

(2) The price to be charged by the Company for gas supplied by them in the parishes and places other than the parishes and places mentioned in subsection (1) of this section (in this Act called "the outer area") shall not at any time exceed the price for the time being charged by the Company in the inner area by more than sixpence per one thousand cubic feet.

(3) Notwithstanding anything in this section contained the Company may at any time charge in any part or parts of the outer area a price or prices lower than the price or prices charged in any other part or parts of the outer area but so that

such lower price or prices shall not be less than the price for A.D. 1912. the time being charged within the inner area.

(4) If in any half year the dividends payable on the A ordinary stock and the B ordinary stock or either of them shall comprise a fractional amount less than one quarter per centum the directors may in their discretion add such fractional amount to the reserve fund or may defer the payment of such fractional amount until the payment of the next or some succeeding dividends and shall in their discretion either add such fractional amount to and pay the same with such succeeding dividends accordingly or add the same to the reserve fund.

70.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to other private ordinary consumers within the limits of supply through any other kind of meter.

Charge for gas supplied by means of prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or any sum at a rate not exceeding one shilling per one thousand cubic feet if such fittings include a cooking or heating stove and if no fittings are supplied with the prepayment meter the maximum charge for the hire of such meter shall not exceed sixpence per one thousand cubic feet of gas supplied in manner aforesaid or ten per centum per annum on the cost of the meter whichever shall be the higher :

The said charges shall include the providing letting fixing and repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor through or by means of such meter or appliance.

71. The prescribed number of candles shall be fourteen.

Quality of gas.

72. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which has

Testing place.

A.D. 1912. — been provided by the limited company on the land firstly described or a testing place to be provided by the Company on any of the lands described in the schedule to this Act.

Testing for quality.

73.—(1) The quality of the gas supplied by the Company shall with respect to its illuminating power be such as to produce at any testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Company or the local authority approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Company shall provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure of gas.

74.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Company shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

75. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess

was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. A.D. 1912.

76.—(1) The Company may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other gas fittings (in this section referred to as “fittings”) for lighting motive power heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply gas fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

77. At least twenty-four hours’ notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever date shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company. Gas consumers to give notice to Company before removing.

78. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production manufacture utilisation or distribution of gas or materials used in or resulting from the manufacture of gas or any residual products thereof but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention. Power to take licences for use of patents relating to gas.

A.D. 1912.

Company to pay interest on money deposited as security for gas.

79. If any person is required by the Company to give to them security in respect of any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Company may refuse to supply gas in certain cases.

80. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas is being or has been supplied to him by the Company and has not paid all money due from him to the Company for the supply of gas or for the rent of a meter they may refuse to furnish to him a supply of gas until he pays the same.

*Supply of gas where consumer has separate supply.

81. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Company a supply or the continuance of a supply of gas for premises having a separate supply (that is to say a supply from an installation of gas or electricity other than that of the Company) unless he shall have previously agreed to pay the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

As to construction and placing of pipes &c. between mains and meters.

82. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:

(3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office or offices of the Company:

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the Court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

83. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer

Power to require use of anti-fluctuators for gas engines.

A.D. 1912. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of the consumer.

Power to enter premises and remove fittings.

84. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Period of error in defective meters.

85. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Contracts for supplying gas for public purposes.

86. The Company may enter into and fulfil any contract or arrangement with any county urban rural or local authority having powers within any part of the limits of supply for the supply of gas by the Company for public purposes within the limits of supply for any period not exceeding under any one such contract or arrangement seven years.

Company may enter into contracts for supply of gas.

87. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply.

MISCELLANEOUS.

A.D. 1912.

88. Notwithstanding anything contained in this Act or in any Act relating to the Company's undertaking the Company shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance or repair of gas fittings.

As to purchase of materials.

89. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Dwelling-houses for Company's employees offices showrooms &c.

90. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and sent by post to the principal office of the Company or be given personally by the consumer at such office.

Notice to discontinue supply of gas.

91. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary of the Company.

Power for directors to determine remuneration of secretary.

92. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised in writing by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last-known or usual place of abode or business or by delivering the same to some inmate at his last-known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be

Authentication and service of notices by Company.

A.D. 1912. sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Receipt in
case of per-
sons not sui
juris.

93. If any money is payable to a shareholder or stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Recovery of
demands.

94. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties &c.

95. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Copy of
Act to be
registered.

96. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than the memorandum or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England.

Costs of Act.

97. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Act.

A.D. 1912

DESCRIPTION OF GAS LANDS.

Firstly A piece of land one acre and a half or thereabouts in extent situate in the parish and urban district of Woking in the county of Surrey abutting on the north side of the Boundary Road about one hundred and forty yards west of the Monument Road which said piece of land is bounded on the south by the Boundary Road on the west by the piece of land secondly described in this schedule on the north by lands forming part of Horsell Common and on the east by the piece of land thirdly described in this schedule.

Secondly A piece of land three roods nineteen perches or thereabouts in extent situate in the said parish and urban district of Woking bounded on the east by the piece of land firstly described in this schedule on the west by property belonging or reputed to belong to Miss Alice Webber on the south by the Boundary Road and on the north by lands forming part of Horsell Common.

Thirdly A piece of land two roods thirteen perches or thereabouts in extent situate in the said parish and urban district of Woking bounded on the west by the said piece of land firstly described in this schedule on the east by Walton Terrace Road on the south by the Boundary Road and on the north by lands forming part of Horsell Common.

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